

HOUSE BILL 1947

By Love

AN ACT to amend Tennessee Code Annotated, Title 24; Title 33; Title 39; Title 40; Title 41; Title 63; Title 68 and Title 71, relative to the Tennessee Women's Childbirth Alternatives, Resources, and Education Act.

WHEREAS, the number of incarcerated women in the State of Tennessee has increased; and

WHEREAS, jails and prisons are often ill-equipped to provide comprehensive prenatal, postpartum, and mental health care; and

WHEREAS, the health and safety of a pregnant or postpartum defendant and the newborn infant should be considered at all stages of the criminal process as a matter of community health and safety; and

WHEREAS, deferring sentencing and providing community-based alternatives for pregnant and postpartum individuals promotes maternal-infant health, reduces recidivism, strengthens families, and serves the interests of justice; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Tennessee Women's Childbirth Alternatives, Resources, and Education Act" or "Trixtian's Law."

SECTION 2. Tennessee Code Annotated, Title 24, Chapter 7, is amended by adding the following as a new section:

(a) Any information related to use of a controlled substance or controlled substance analogue, as defined in the Tennessee Drug Control Act of 1989, compiled in title 39, chapter 17, part 4, obtained solely through a pregnancy test, prenatal or postpartum medical care, or disclosures made while seeking or participating in

behavioral health treatment during pregnancy or postpartum is inadmissible as evidence of a criminal offense.

(b) This section only applies to criminal proceedings.

(c) This section does not:

(1) Apply if the information described in subsection (a) was obtained by independent, lawful means;

(2) Limit admissibility for non-criminal health purposes otherwise authorized by state law;

(3) Restrict mandatory reporting otherwise required by state law; or

(4) Authorize the criminalization of pregnant persons, which includes the following:

(A) Allowing pregnancy, a pregnancy outcome, or pregnancy-related health information to serve as a basis for criminal charges, sentence enhancements, probative violations, or adverse legal consequences;

(B) Criminal charges being brought on the basis of a miscarriage, stillbirth, controlled substance exposure, or other pregnancy outcomes; and

(C) The use of pregnancy-related medical information to initiate new criminal investigations and punitive responses to health conditions or outcomes that occur during pregnancy or postpartum period.

(d) As used in this section, "postpartum" means the one-year period following a delivery, stillbirth, miscarriage, ectopic pregnancy, or other non-live birth outcome.

SECTION 3. Tennessee Code Annotated, Title 41, Chapter 1, Part 1, is amended by adding the following as a new section:

41-1-129. Perinatal justice data — Annual report.

(a) On January 1, 2027, and annually thereafter, the department of correction and each local correctional facility shall report the total number of the following to the department of health for the preceding calendar year:

- (1) Incarcerated women;
- (2) Incarcerated pregnant persons;
- (3) Persons requesting pregnancy testing;
- (4) Live births;
- (5) Stillbirth deliveries;
- (6) Miscarriages; and
- (7) Ectopic pregnancies.

(b) Such reports must exclude patient-identifying information and comply with state and federal confidentiality laws, including the Health Insurance Portability and Accountability Act (HIPAA) (42 U.S.C. § 1320d et seq.).

(c) The department of health may publish an annual deidentified statewide summary on the department's website.

SECTION 4. Tennessee Code Annotated, Title 41, Chapter 4, is amended by adding the following as a new section:

41-4-130. Expeditious transfer of pregnant persons to state custody.

(a) It is the intent of the general assembly that a pregnant person temporarily held in a local correctional facility pending transfer to the custody of the department of correction be transferred as expeditiously as possible.

(b) A sheriff of a county and the department of correction shall make reasonable efforts to facilitate such transfer without unnecessary delay.

(c) This section does not apply to a person sentenced to serve a sentence in a local correctional facility.

SECTION 5. Tennessee Code Annotated, Section 41-21-204(c)(2), is amended by redesignating the existing subdivision (c)(2)(C) as subdivision (c)(2)(D) and adding the following as a new subdivision (c)(2)(C):

(C) A correctional institution is immune from civil liability based on any pregnancy outcome.

SECTION 6. Tennessee Code Annotated, Section 41-21-204, is amended by adding the following as a new subsection:

(h)

(1) The department of correction and each local correctional facility shall provide access to pregnancy testing within seventy-two (72) hours of an eligible person's request.

(2) A pregnancy test request, as described in subdivision (h)(1), and any tests conducted and any test results produced pursuant to such request are considered medical information and shall only be disclosed in compliance with the Health Insurance Portability and Accountability Act (HIPAA) (42 U.S.C. § 1320d et seq.) and standards for privacy of individually identifiable health information required by 45 CFR Parts 160 and 164.

(3) This subsection (h) does not authorize the surveillance of a pregnant person, which includes the following:

(A) The use of pregnancy testing, medical records, or perinatal health information to monitor behavior for law enforcement purposes;

(B) The use of required data reporting to identify, investigate, or target a pregnant or postpartum person; and

(C) Any expansion of correctional institutional monitoring beyond what is necessary to provide medical care or implement diversion, deferral, or custody alternatives.

(4) The department of correction is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 7. Tennessee Code Annotated, Section 68-3-608(a)(1), is amended by adding the language ", pharmacies," immediately after "healthcare facilities".

SECTION 8. Tennessee Code Annotated, Section 68-3-608(a)(1), is amended by adding the following at the end of the subdivision:

The healthcare facility, pharmacy, and provider shall provide such records within thirty (30) days of a written request.

SECTION 9. Tennessee Code Annotated, Section 68-3-608, is amended by adding the following as a new subsection:

(f) A healthcare facility, pharmacy, or provider that provides records in good faith pursuant to this section is not liable for civil damages and is not subject to criminal or professional disciplinary action for such compliance.

SECTION 10. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 11. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.